

EXHIBIT 1

CAQCC Reg. 3
November 1995 SIP Common Provision Regulation
(EPA Approved)
5 Colo. Code Regs. § 1001-2

Exhibit 1 - Part 2

DEPARTMENT OF HEALTH

AIR QUALITY CONTROL COMMISSION

COMMON PROVISIONS REGULATION

5 CCR 1001-2

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DEC 15 1992

AIR QUALITY
CONTROL COMMISSION

EDITOR'S NOTES*

Authority Cited:

See page 1, section I, B.

History and Amendments:

Repealed and readopted 12/14/78, 2 CR 1. Pp. 1-28 adopted 5/22/80, effective 6/30/80, 3 CR 6. Pp. 1-33 amended and revised 6/5/80, effective 7/30/80, 3 CR 7. Pp. 4-5 adopted 11/20/80, effective 12/30/80, 3 CR 12. Pp. 1-27 adopted 4/8/82, effective 5/30/82, 5 CR 5. Pp. 1-36 adopted 3/10/83, effective 4/30/83, 6 CR 4. Pp. 1-38 adopted 8/18/88, effective 9/30/88, 11 CR 9. Pp. 1-37 adopted 5/17/90, effective 6/30/90, 13 CR 6. Pp. 1-36 adopted 10/17/91, effective 11/30/91, 14 CR 11. Pp. 1-36 adopted 8/20/92, effective 9/30/92, 15 CR 9. Pp. 1-38 adopted 11/19/92, effective 12/30/92, 15 CR 12.

A. G. Opinions:

2 AG 15; 3 AG 148; 3 AG 186; 3 AG 301; 5 AG 113; 6 AG 110-111; 11 AG 270; 13 AG 175; 14 AG 358; 15 AG 360; 15 AG 507

Annotations:

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COMMON PROVISIONS REGULATION

Definitions, Statement of Intent, and
General Provisions Applicable to all
Emission Control Regulations
Adopted by the
Colorado Air Quality Control Commission

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G. Definitions:

The following words and phrases shall have the following meanings unless the context in which they are used requires specific meaning within separate Commission regulations. In those instances, words and phrases shall be defined in the appropriate regulation.

ABSOLUTE VAPOR PRESSURE

The pressure-relative to an absolute vacuum-which a confined vapor exerts at a given temperature when in equilibrium with its solid or liquid state.

ACT

The "Colorado Air Quality Control Act" being Article 7 of Title 25, Colorado Revised Statutes, 1973, as amended.

ACTUAL EMISSIONS

The rate of emission of a pollutant from an emissions unit, determined as follows:

- a. Actual emissions as of a particular date shall equal the average rate, in tons per year, at which the unit emitted the pollutant during a two-year period which precedes the particular date and is representative of normal unit operation. A different period may be used if it is more representative of normal unit operation. Actual emissions shall be calculated using actual operating hours, production rates, and types of materials processed, stored or combusted during the selected time period;
- b. The Division may presume that source-specific allowable emissions for the unit are equivalent to the actual emissions of the unit only if actual emissions cannot be determined pursuant to Paragraph a. above;
- c. For any emissions unit which has not begun normal operations on the particular date, actual emissions shall equal the potential to emit of the unit on that date.

ADVERSE ENVIRONMENT EFFECT

As a term used in the context of regulating hazardous air pollutants, any significant and widespread adverse effect; which may reasonably be anticipated, to wildlife, aquatic life, or other natural resources, including adverse impacts on populations of endangered or threatened species or significant degradation of environmental quality over broad areas.



(iv) Use of an alternative fuel by reason of an order or rule under Section 125 of the Federal Act; or

(v) Change in ownership of the source.

c. Emissions resulting from construction and exploration shall be excluded in determining whether a modification will occur. Emissions from on-going construction, and emissions from natural gas flaring are not considered to be temporary emissions, and are included in determining whether a modification will occur.

d. This definition shall not be used as a definition of "Major Modification," which is a distinct and separate definition in Regulation No. 3.

MONITORING SYSTEM

The complete set of equipment required under these regulations which is used to measure and record, if so required, those parameters specified.

MOTOR VEHICLE

Any vehicle with four or more wheels which is operated on the ground, self-propelled with gasoline as a fuel, and designated and manufactured primarily for the transportation of not more than ten people. Any truck having a gross vehicle weight of 8,500 pounds or less (manufacturer rated) and for which registration in Colorado is required for operation on public roads and highways.

MOTOR VEHICLE EXHAUST GAS

Any instrument approved by the Division ANALYZER which is used to measure the concentrations of carbon monoxide and hydrocarbons in motor vehicle exhaust.

NET EMISSIONS INCREASE

- a. The amount by which the sum of the following exceeds zero:
- (i) Any increase in actual emissions from a particular physical change or change in the method of operation at a stationary source; and
 - (ii) Any other increases and decreases in actual emissions at the source that are contemporaneous with the particular change and are otherwise creditable.



PILOT PLANT

A small scale facility first used for experimental purposes to study the feasibility of an operation prior to constructing a full scale plant.

PM10

Particulate matter with an aerodynamic diameter less than or equal to a nominal 10 micrometers as measured by an EPA approved reference method.

PM10 EMISSIONS

Finely divided solid or liquid material, with an aerodynamic diameter less than or equal to a nominal 10 micrometers emitted to the ambient air as measured by applicable referenced methods, or an equivalent or alternative method specified by EPA, or by a test method specified in an approved State Implementation Plan.

PORTLAND CEMENT PLANT

A facility manufacturing portland cement by either the wet or dry process.

POTENTIAL TO EMIT

The maximum capacity of a stationary source to emit a pollutant under its physical and operational design. Any physical or operational limitation on the capacity of the source to emit a pollutant, including air pollution control equipment and restrictions on hours of operation or on the type or amount of material combusted, stored, or processed, shall be treated as part of its design if the limitation or the effect it would have on emissions is enforceable and federally enforceable. Secondary emissions do not count in determining the potential to emit of a stationary source.

PRIMARY ALUMINUM REDUCTION PLANT

A facility manufacturing aluminum by electrolytic reduction.

PRIMARY COPPER SMELTER

An installation or intermediate process in production of copper through the use of pyrometallurgical techniques.

PRIMARY LEAD SMELTER

An installation or any intermediate process employed in the production of lead through the use of pyrometallurgical techniques.

PRIMARY ZINC SMELTER

An installation engaged in the production or any intermediate process in the production of zinc or zinc oxide through the use of pyrometallurgical techniques.



SIGNIFICANT

- a. Unless the context otherwise requires, for purposes of the Colorado PSD program, a significant rate of emissions in tons per year (TPY) is defined as a value that would equal or exceed any of the following:

POLLUTANT	SIGNIFICANT EMISSION RATE, TPY
Carbon monoxide:	100
Nitrogen oxides:	40 (NO+NO ₂)
Sulfur dioxide:	40
Particulate matter:	25 tpy of Particulate Matter Emissions 15 tpy OF PM ₁₀ Emissions
Ozone:	40 tpy of VOC
Lead:	0.6
Fluorides:	3
Sulfuric acid mist:	7
Hydrogen sulfide (H ₂ S):	10
Total reduced sulfur (including H ₂ S):	10
Reduced sulfur compounds (including H ₂ S):	10
Municipal Waste Combustor Organics (measured as total tetra- through octa-chlorinated dibenzo-p-dioxins and dibenzofurans):	3.2 X 10 ⁻⁶ megagrams per year (3.5 X 10 ⁻⁶ tons per year)
Municipal Waste Combustor Metals (measured as particulate matter):	14 megagrams per year (15 tons per year)
Municipal Waste Combustor Acid Gases (measured as sulfur dioxide and hydrogen chloride):	36 megagrams per year (40 tons per year)



CAQCC Reg. 3
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Exhibit 1 - Part 3

DEPARTMENT OF HEALTH

AIR QUALITY CONTROL COMMISSION

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AIR QUALITY
CONTROL COMMISSION

REGULATION No. 3 AIR CONTAMINANT EMISSIONS NOTICES

5 CCR 1001-5

EDITOR'S NOTES*

Authority Cited:

Article 7 of Title 25, C.R.S.

History and Amendments:

Amended 1/12/78, 1 CR 2. Repealed and readopted 12/14/78, 2 CR 1. Pp. 7-8.01 adopted as emergency regulation 6/7/79, 2 CR 7. P. 12 approved 7/12/79, 2 CR 8. Pp. 1-26 repromulgated 6/5/80, effective 7/30/80, 3 CR 7. Pp. 7-8, 25 adopted 5/13/82, effective 6/30/82, 5 CR 6. Pp. 1-52 adopted 3/10/83, effective 4/30/83, 6 CR 4. Pp. 34-60 adopted 2/7/85, effective 3/30/85, 8 CR 3. Pp. 1-61 adopted 3/20/86, effective 4/30/86, 9 CR 4. Pp. 21-22 reissued due to clerical error by Department of Health, 9 CR 7. Pp. 1-58 adopted 3/19/87, effective 4/30/87, 10 CR 4. Pp. 59-63 adopted 11/19/87, effective 12/30/87, 10 CR 12. P. 42 adopted as emergency regulation 6/16/88, effective 6/16/88, 11 CR 7. Pp. 1-74 adopted 8/18/88, effective 9/30/88, 11 CR 9. Pp. 48-49 adopted 9/15/88, effective 10/30/88; p. 48E adopted as emergency regulation 9/20/88, effective 9/20/88, 11 CR 10. P. 49 adopted as emergency regulation 6/1/89, effective 6/1/89; p. 50 adopted as emergency regulation 6/15/89, effective 6/15/89, 12 CR 7. P. 50 adopted as emergency regulation 9/21/89, effective 9/21/89, 12 CR 10. Pp. 1-74 adopted as emergency regulation 1/18/90,

A. G. Opinions:

1 AG 129; 2 AG 15; 2 AG 162; 3 AG 187; 5 AG 150; 6 AG 110-111; 8 AG 52; 9 AG 88; 9 AG 193; 10 AG 101; 10 AG 359; 11 AG 206; 11 AG 271; 11 AG 318-319; 12 AG 215-216;

Annotators:

Colorado-Ute Electric Association v. Air Pollution Control Commission, Colorado Court of Appeals No. 77-662, November 27, 1981, held that the Air Pollution Control Commission did not have statutory authority to issue section II.H.1 of Air Pollution Control Commission Regulation No. 3 (5 CCR 1001-5) governing the issuance of air contaminant emission permits.

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EDITOR'S NOTES (continued)

History and Amendments:

13 CR 2. Pp. 1-78 adopted 5/17/90, effective 6/30/90, 13 CR 6. Pp. 1-75 adopted 10/17/91; effective 11/30/91, 14 CR 11. Pp. 1-36 adopted 8/20/92, effective 9/30/92, 15 CR 9. Pp. 76-83 adopted as emergency regulation 10/15/92, effective 10/15/92, 15 CR 11. Pp. 1-75 adopted 11/19/92, effective 12/30/92, 15 CR 12.

A.G. Opinions:

12 AG 341; 13 AG 51-52; 13 AG 176; 14 AG 360; 15 AG 361-361A; 15 AG 455; 15 AG 508

Annotations:

Rule IV, H.B. adopted 5/17/90, was not extended by H.B. 91-1257 and therefore expired June 1, 1991.

REGULATION NO. 3

"A Regulation Requiring Air Pollution Emissions Notices,
Emission Permits and Fees Including Regulations
for the Prevention of Significant Deterioration (PSD)"

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REGULATION NO. 3

"A Regulation Requiring Air Pollution Emissions Notices,
Emission Permits and Fees Including Regulations
for the Prevention of Significant Deterioration (PSD)"

I. APPLICABILITY

- A. The provisions of this regulation shall apply statewide. All sources which did not commence construction or operation prior to February 1, 1972, are required to have an emission permit except as specified in Section III.

Pursuant to Section 24-4-103 (12.5), C.R.S., materials incorporated by reference are available for public inspection during normal business hours, or copies may be obtained at a reasonable cost, from the Technical Secretary of the Air Quality Control Commission, 4300 Cherry Creek Drive South, Denver, Colorado 80222. Materials incorporated by reference are those editions in existence as of the date this regulation is promulgated or revised by the Air Quality Control Commission and references do not include later amendments to or editions of the incorporated materials.

B. Definitions

1. Fugitive Dust

For purposes of Regulation No. 3 "fugitive dust" means soil or other airborne particulate matter (excluding particulates produced directly during combustion) resulting from natural forces or from surface use or disturbance, including, but not limited to, all dust from agriculture, construction, forestry, unpaved roads, mining, exploration, or similar activities in which earth is either moved, stored, transported, or redistributed; except that fugitive dust shall not include any fraction of such soil or other airborne particulate matter which is of a size or substance to adversely affect public health or welfare.

2. Major Modification

Means any physical change in the method of operation of, or addition to a major stationary source that would result in a significant net emissions increase of any air pollutant subject to regulation under the Federal Act or the Act (taking into account all emissions decreases and increases at the source which would accompany the modification).

- a. Any net emissions increase that is significant for volatile organic compounds shall be considered significant for ozone.



III. GENERAL REQUIREMENT FOR EMISSION PERMITS

A. General Considerations

1. Except where specifically authorized by the terms of this Regulation No. 3, no person shall commence construction of any stationary source or modification of a stationary source without first obtaining or having a valid permit from the Division.
2. Any permit which has been issued pursuant to a prior regulation of the Commission, with respect to a project or the operation thereof, shall continue in full force and effect for the purpose for which it was originally issued.
3. Any orders or decisions of the Division shall be final upon issue.

B. Transfer or Assignment of Ownership

If transfer or assignment of ownership or operation of a permitted air pollution emission source is anticipated, the prospective owner or operator shall apply to the Division on Division supplied forms for reissuance of the existing permit. The permit shall be reissued upon completion of the transfer or assignment if the applicant certifies that no change is contemplated which might constitute a new or modified air pollution source. In no event shall the new owner or operator of a source which was subject to the requirements of these regulations prior to the transfer or assignment be relieved of the obligation to comply with such requirements by reason of a transfer.

C. Portable Sources

A permitted portable source (e.g., asphalt plants, crushers, etc.) shall have its emission permit number permanently and prominently displayed on each major component of equipment that is a part of that portable source.

D. Exemption from Permit Requirements

1. The following sources are exempt because by themselves, or cumulatively as a category, they are deemed to have a negligible effect on air quality:
 - a. Those sources exempted from the filing of APENs in Section II.C. of this regulation except that for the purposes of this section, the exemption for residential structures shall be limited to single-family residential dwellings.
 - b. Commercial laundries (except dry cleaners) which do not burn liquid or solid fuel.
 - c. Stationary Internal Combustion Engines:
 - (i) internal combustion engines powering portable drilling rigs.



(E) Sources undergoing fuel switches as required by federal order or through lack of an adequate fuel supply if the Division determines that:

- (1) The applicant has used his best efforts in seeking the required emission offsets but was unsuccessful;
- (2) All available emission offsets were obtained;
- (3) The applicant will continue to seek emission offsets as they become available.

d. Minor Sources

For minor sources where the emission would cause or contribute to ambient concentrations which exceed a National Ambient Air Quality Standard in designated non-attainment areas, permits shall be issued if, in addition to determining that the source will meet the requirements of paragraph IV.D.1., the Division determines that Reasonably Available Control Technology (RACT) will be applied and the applicant has adequately demonstrated that reasonable further progress toward the attainment of the National Ambient Air Quality Standards will not be impaired as outlined in the SIP.

3. Requirements Applicable to Attainment and Unclassifiable Areas and pollutants implemented under Section 110 of the Federal Act (Prevention of Significant Deterioration Program).

a. Major Stationary Sources and Major Modifications.

The requirements of this Section IV.D.3. shall apply to any major stationary source and any major modification with respect to each pollutant regulated under the Act and the Federal Act that it would emit, except as this Regulation No. 3 would otherwise allow. For permit applications on which an interested person has requested a hearing pursuant to Section IV.C.4.f.(iv), the Commission shall make the decisions and determinations otherwise delegated to the Division.

For any new major stationary source or major modification proposing to construct in any area in Colorado designated under Section 107 (d) of the Federal Act as attainment or unclassifiable for any criteria pollutant as of the date of submittal of a complete application under this Regulation

No. 3, or for pollutants implemented under Section 110 of the Federal Act, the Division shall grant a permit if it determines that the following requirements, in addition to those in paragraph IV.D.1., have been or will be met:

